

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin Kabadi	Team: Squad #02	CCRB Case #: 202311045	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 09/08/2023 9:00 AM	Location of Incident: § 87(2)(b) § 87(2)(b)	18 Mo. SOL 3/8/2025	Precinct: 32		
Date/Time CV Reported Wed, 11/22/2023 11:20 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 11/22/2023 11:20 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Riquelmy Mendez	13022	945250	032 PCT
2. PO Peter Crane	29865	918896	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Erik Rodriguez	16334	971750	032 PCT
2. SGT Jenny Wong	03524	947613	032 PCT
3. PO Jeffrey Bejarano	11097	973935	032 PCT
4. PO Thomas Principato	13828	970100	032 PCT
5. PO Md Rahman	26328	972416	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Riquelmy Mendez	Abuse: Police Officer Riquelmy Mendez entered § 87(2)(b) in Manhattan.	§ 87(2)(b)
B . PO Peter Crane	Abuse: Police Officer Peter Crane searched § 87(2)(b) in Manhattan.	§ 87(2)(b)

Case Summary

On November 22, 2023, § 87(2)(b) submitted this complaint via the CCRB's website (BR 01).

At approximately 9:00 A.M. on September 8, 2023, § 87(2)(b) got into an altercation with another resident at the § 87(2)(b) Hostel at § 87(2)(b) in Manhattan. Police Officer Riquelmy Mendez, Police Officer Erik Rodriguez, Sergeant Jenny Wong, and Police Officer Peter Crane of the 32nd Precinct responded to the incident. Police Officer Riquelmy Mendez allegedly stepped into § 87(2)(b) room (Allegation A: Abuse of Authority – Entry of Premises, § 87(2)(g) said, “You’re under arrest,” and, with the assistance of Police Officer Rodriguez and Police Officer Crane, placed § 87(2)(b) in handcuffs. Once § 87(2)(b) was handcuffed, Police Officer Crane opened § 87(2)(b) refrigerator and looked inside (Allegation B: Abuse of Authority – Search of Premises, § 87(2)(g) § 87(2)(b) was arrested and charged with Menacing (BR 18).

The investigation received body-worn camera footage (“BWC”) from the BWCs of Police Officer Rodriguez, Police Officer Mendez, Sergeant Wong, Police Officer Crane, Police Officer Jeffrey Bejarano, Police Officer Thomas Principato, and Police Officer Muhammed Rahman of the 32nd Precinct (BR 02). § 87(2)(b) provided a cell phone video she shot during the incident (BR 16).

The Statue of Limitations (SOL) of this case will pass on March 8, 2025. There were two primary delays in the closure of this case. Firstly, § 87(2)(b) filed this complaint more than two months after the incident occurred. Secondly, the case was originally closed on November 25, 2024, but, following General Counsel Review, it was returned for additional investigative work, which consisted primarily of interviewing Police Officer Mendez. Police Officer Mendez then missed two scheduled interview appointments for various reasons and did not appear for an interview until February 7, 2025.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Riquelmy Mendez entered § 87(2)(b) in Manhattan.

§ 87(2)(b) was interviewed by the CCRB on December 7, 2023 (BR 05). Police Officer Crane was interviewed by the CCRB on September 19, 2024 (BR 06). Police Officer Mendez was interviewed on February 7, 2025.

In § 87(2)(b) account, she stated that on the morning of the incident date, she had an altercation with a fellow resident in the Hostel and § 87(2)(b) threatened to mace the other individual. Approximately 20 minutes later, § 87(2)(b) heard a knock on her door. When she opened her door, she saw Police Officer Mendez, Police Officer Rodriguez, Police Officer Crane, Sergeant Wong, and the director of the § 87(2)(b). They informed § 87(2)(b) that they had gotten a call that she had committed an assault and asked her step out of her room. § 87(2)(b) refused to step out of her room. Police Officer Mendez stepped into § 87(2)(b) room and said, “You’re under arrest.” Police Officer Mendez pulled § 87(2)(b) hands behind her back and handcuffed her.

As per EVENT # § 87(2)(b) (BR 17), at 9:39 a.m. a male caller called 911 and reported that a 5’5” tall black female in her 50s with a cane had thrown water at and pushed a female at the § 87(2)(b) located at § 87(2)(b).

In Police Officer Mendez's account, he stated that he responded to a harassment call coming from the § 87(2)(b). When Police Officer Mendez arrived, the victim told him that § 87(2)(b) menaced her with her cane. After the complainant's statement, Police Officer Mendez went upstairs to identify § 87(2)(b). When § 87(2)(b) opened her door, she told the officers that she only sprayed into the hallway. Since the complainant was unwilling to approach § 87(2)(b) door to identify her, the officers had her stand on one side of the hallway. The officers were attempting to get § 87(2)(b) to step out of her room so the complainant could identify her discreetly, but § 87(2)(b) did not listen to any of the officer's commands. Approximately two hours later, a § 87(2)(b) staff member was able to convince § 87(2)(b) to step out of her room. At this point, § 87(2)(b) was past the threshold of the entry to her room, and the complainant was able to identify her. Police Officer Mendez then approached § 87(2)(b) and said, "You're under arrest" and grabbed her right arm. As Police Officer Mendez was attempting to place § 87(2)(b) in handcuffs, she retreated into her room. Since Police Officer Mendez was holding on to § 87(2)(b) arm, he maintained a hold of her arm and entered the room with her to complete the arrest. Police Officer Mendez's understanding was that regardless of whether he was arresting § 87(2)(b) for a misdemeanor or a felony, he was allowed to follow § 87(2)(b) into her room and complete the arrest and did not need a warrant to enter. Police Officer Mendez stated that there were no other exigent circumstances present in this incident.

In Police Officer Mendez's BWC video (BR 07), when officers arrive at the § 87(2)(b) Hostel, they initially speak to staff and the individual whom § 87(2)(b) had allegedly assaulted. At 24:30, the officers and § 87(2)(b) staff go up to § 87(2)(b) room and speak to her, with § 87(2)(b) standing in the threshold of her room while the officers and staff stand in the hallway outside the room. At timestamp 1:39.22, while speaking to a § 87(2)(b) staff member, § 87(2)(b) steps out of her room on her own and stands in the hallway immediately outside her room while two § 87(2)(b) staff members enter her room. Police Officer Mendez approaches § 87(2)(b) while she is in the hallway outside of the room, saying, "Do me a favor § 87(2)(b), put your phone down and put your hands behind your back." § 87(2)(b) replies, "Why am I put, why am I put, why am I getting arrested? For what?" Police Officer Mendez says, "You're under arrest, you're under arrest." He grabs § 87(2)(b) arm with his right hand, in which he is also holding a handcuff. While Police Officer Mendez has her arm, she begins to back up into her room while saying, "But what am I under arrest for?" Police Officer Mendez replies, "I'm going to explain it to you, but I need to you comply." § 87(2)(b) asks repeatedly, "Why are you arresting me?" Police Officer Rodriguez replies, "Ma'am you are being arrested for menacing, okay?" § 87(2)(b) asks, "Menacing for what? I didn't say nothing to that lady." Police Officer Mendez says, "Don't push me off. At this point you're resisting arrest. Are you resisting arrest? Are you resisting arrest?" § 87(2)(b) repeatedly says, "You're hurting me." As the back and forth ensues, Police Officer Mendez maintains his hold on the arm of § 87(2)(b) who has now backed in her room while Police Officer Mendez has stepped into the threshold of her room. Police Officer Mendez replies, "I'm not hurting you," and places a handcuff on § 87(2)(b) wrist. Police Officer Rodriguez steps into § 87(2)(b) room to assist Police Officer Mendez in handcuffing § 87(2)(b). At timestamp 1:40:55, § 87(2)(b) sits down on the floor and the officers finish handcuffing her.

Police Officer Crane's BWC video (BR 08) shows the handcuffing of § 87(2)(b) from a different angle. At timestamp 1:25:15, Police Officer Mendez approaches § 87(2)(b) while she is standing outside of her room door. After Police Officer Mendez says, "Do me a favor § 87(2)(b) put your phone down and put your hands behind your back," § 87(2)(b) replies, "Why am I put, why am I put, why am I getting arrested? For what?" while backing up into her room. As Police Officer Mendez attempts to arrest § 87(2)(b) he does not fully enter her room. At 1:25:56, Police Officer Mendez places the handcuff on one of § 87(2)(b) wrists while he is still outside the room. Then Police Officer Rodriguez enters the room to assist Police Officer Mendez with arresting § 87(2)(b).

As the officers are attempting to place § 87(2)(b) in handcuffs, she continuously resists their attempts. When § 87(2)(b) does to the ground, Police Officer Mendez steps fully into the room to continue attempting to place § 87(2)(b) in handcuffs.

Officers may not conduct warrantless entries and searches of areas over which civilians maintain a reasonable expectation of privacy without consent. Exceptions to this rule recognized by the courts include exigent circumstances, per People v. McBride, 14 N.Y.3d 440 (2010) (**BR 12**) and emergencies, per People v. Rodriguez, 77 A.D.3d 280 (2010) (**BR 11**).

In McBride, the court applied a number of different factors to determine whether exigent circumstances are present, including but not limited to “(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended and (6) the peaceful circumstances of the entry.”

A warrantless arrest of a suspect in the threshold of a residence is permissible under the Fourth Amendment, provided that the suspect has voluntarily answered the door, and the police have not crossed the threshold. A person enjoys enhanced constitutional protection from a warrantless arrest in the interior of the home, per People v. Garvin, 30 N.Y. 3d 174 (2017) (**BR 09**).

In People v. Jacobo, 154 Misc. 2d 540, 585 N.Y.S.2d 665 (1992), (**BR 19**), officers saw a defendant wanted for a felony exiting his apartment. When the defendant saw the officers, he started to reenter his apartment as an officer rushed towards him. The officer grabbed the defendant on the threshold and was dragged three to four feet inside the apartment during the ensuing struggle to arrest the defendant. The court stated that an apartment hallway is a public place for constitutional purposes where a tenant does not have a reasonable expectation of privacy and ruled that “defendant's attempt to evade the police by reopening the apartment door and trying to reenter the apartment does not afford him added constitutional protection against a warrantless arrest in these circumstances.” Further, as the defendant fled inside, the arrest having been initiated properly, [the officer] was entitled to effectuate it in a reasonable manner and to prevent the defendant from fleeing. The intrusion was minimal.”

In Lange v. California, 594 U.S. 295 (2021) (**BR 20**) the court ruled that need to pursue a person who had committed misdemeanor, as opposed to a felony, did not trigger categorical rule allowing warrantless home entry and that a warrant was required unless, under the totality of circumstances, including nature of crime, flight and surrounding facts, there were exigent circumstances.

As per NYS Penal Law § 120.15 (**BR 21**), a person is guilty of menacing in the third degree when, by physical menace, they intentionally place or attempt to place another person in fear of death, imminent serious physical injury or physical injury. It is a class B misdemeanor.

BWC video shows that, contrary to her account, § 87(2)(b) was past the threshold of the entrance into her room in a public hallway when Police Officer Mendez initiated her arrest, which prompted § 87(2)(b) to retreat into her room and for Police Officer Mendez to follow her in to complete the arrest. § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Peter Crane searched § 87(2)(b)
in Manhattan.

In § 87(2)(b) account, she stated that after she was handcuffed, Police Officer Crane opened her fridge and looked inside of it. The officers did not search any other part of § 87(2)(b) room.

In Police Officer Crane's account, he stated that he opened § 87(2)(b) fridge because he was looking inside for any refrigerated medication. Police Officer Crane did not recall if § 87(2)(b) told him about any illnesses. Police Officer Crane stated that he acted upon his own initiative when he checked § 87(2)(b) fridge. Police Officer Crane cited his background as a paramedic and stated that he wanted to check to see if § 87(2)(b) had any medication, she needed to take with her since he was not sure when she would be coming back to her room following the arrest.

In Police Officer Crane's BWC (BR 08), at timestamp 1:37:30, after Police Officer Crane helps § 87(2)(b) up from the floor, Police Officer Crane looks through § 87(2)(b) items on the top of her fridge and then looks into her fridge. Police Officer Crane says, "Quick look for any type of medications. No type of diabetes medications that would be in the fridge. Okay good." § 87(2)(b) says, "He just put something in my refrigerator." Police Officer Crane replies, "I didn't put anything in your refrigerator." § 87(2)(b) asks, "Why did you open my refrigerator?" Police Officer Crane replies, "To see if you had medications in there." § 87(2)(b) replies, "Okay, I don't keep anything in there." Police Officer Crane replies, "Okay well some people do, and it has to be refrigerated. Like if you were diabetic or anything like that." § 87(2)(b) replies, "I'm not diabetic and I didn't tell you I was."

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b) what is seen in the BWC video, where, after Police Officer Crane opened § 87(2)(b) refrigerator and § 87(2)(b) questioned it, Police Officer Crane indicated that he assumed she was diabetic and had medication in her refrigerator. At the point that Police Officer Crane opened § 87(2)(b) refrigerator, he did not have any information regarding § 87(2)(b) medical history to indicate that she had any refrigerated medications stored inside of her refrigerator.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Police Officer Riquelmy Mendez has been a member of service for 17 and has been a subject in 2 CCRB complaints and 4 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Peter Crane has been a member of service for 27 years and has been a subject in 3 CCRB complaints and 5 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming injuries to her knee, lower back along with pain/suffering and is seeking \$75,000 as redress. There is no 50H hearing scheduled (**BR 13**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 2

Investigator:	<u>Kevin Kabadi</u>	<u>Investigator Kevin Kabadi</u>	<u>2/13/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>2/13/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date